

23STCV12335 23STCV12335

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-14

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Case Number: 23STCV12335 Hearing Date: July 14, 2026 Dept: P

MICHAEL CLAYTON v. XPO

LOGISTICS FREIGHT, INC., ET AL.

CASE NO.: 23STCV12335

HEARING: 07/14/2026 @

10:30 AM

#16

TENTATIVE ORDER

I.

Plaintiff Michael Clayton's motion for sanctions under Code of Civil Procedure section 128.7 is DENIED.

II.

Defendant Amarok LLC's motion for summary judgment is DENIED without prejudice.

Moving party to give notice.

There are two motions on calendar: (1) Defendant Amarok LLC (Defendant) moves for summary judgment or, in the alternative, summary adjudication as to the complaint and (2) Plaintiff Michael Clayton (Plaintiff) moves for sanctions pursuant to Code of Civil Procedure section 128.7 for Defendant's refusal to withdraw frivolous motion for summary judgment.

Background

On March 31, 2023, Plaintiff initiated this action against Defendants XPO Logistics Freight Inc., Alameda Engle Properties, LLC, Doe Fence Company, Secure Mobile Destruction, Inc., and Does 1 to 50. Plaintiff alleges that, during a delivery on June 17, 2021, at 8440 Alameda Street in the City of Los Angeles (Subject Premises), he was electrocuted by an electrified fence that enclosed the Subject Premises. It is further alleged that, at the time of the incident, the electrified fence discharged over 7,000 volts of electricity, did not have a perimeter fence, and did not have any warning signs visible to Plaintiff. The only warning sign was located on the opposite side of the fence facing the opposite direction of the Plaintiff. The complaint asserts four causes of action: (1) negligence; (2) products liability; (3) premises liability; and (4) strict liability.

On June 8, 2023, Plaintiff filed an Amendment to Complaint naming Alameda Fleet Yard as Doe 1. On October 18, 2023, Plaintiff filed Amendments to Complaint naming Amarok, LLC as Doe 2 and 8201 Santa Fe CA LLC as Doe 3.

On March 18, 2026, Defendant filed a Motion for Summary Judgment as to Plaintiff's complaint.

On May 15, 2026, Plaintiff filed a Motion for Sanctions for Defendant's Refusal to Withdraw Frivolous Motion for Summary Judgment.

Plaintiff's Motion for Sanctions

Legal Standard

"By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met:

(1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.

(2) The

claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

(3) The

allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

(4) The

denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief.

(Code Civ. Proc.,

§ 128.7, subd. (b).) "If...the court determines that subdivision (b) has been violated, the court may...impose an appropriate sanction upon the attorneys, law firms, or parties that have violated subdivision (b) or are responsible for the violation." (Code Civ. Proc., § 128.7, subd. (c).) "A motion for sanctions under this section shall be made separately from other motions or requests and shall describe the specific conduct alleged to violate subdivision (b). Notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected." (Code Civ. Proc., § 128.7, subd. (c)(1).)

Code of Civil Procedure section 128.7 should only be

utilized in "the rare and exceptional case where the action is clearly frivolous, legally unreasonable or without legal foundation, or brought for an improper purpose." (Kumar v. Ramsey (2021) 71 Cal.App.5th 1110, 1121, citing Operating Engineers Pension Trust v. A-C Co. (9th Cir. 1988) 859 F.2d 1336, 1344.) "Because our adversary system requires that attorneys and litigants be provided substantial breathing room to develop and assert factual and legal arguments, [section 128.7] sanctions should not be routinely or easily awarded even for a claim that is arguably frivolous [citations], and instead should be made with restraint." (Kumar, supra, 71 Cal.App.5th at p. 1344, citing Peake v. Underwood (2014) 227 Cal.App.4th

428, 448.) “A trial court is to apply an objective standard in making its inquiry concerning the attorney's or party's allegedly sanctionable behavior in connection with a motion for sanctions brought under section 128.7.” (Optimal Markets, Inc. v. Salant (2013) 221 Cal.App.4th 912, 921.)

Discussion

Plaintiff moves for an order imposing monetary sanctions against Defendant and its counsel of record pursuant to Code of Civil Procedure section 128.7 in the amount of \$40,875. Plaintiff moves on the grounds that Defendant filed and knowingly continues to advocate for a frivolous Motion for Summary Judgment which contains factual assertions that are not grounded in fact or supported by admissible evidence.

Plaintiff recounts that “Defendant Amarok and its counsel filed one frivolous motion for summary judgment relying primarily on the declarations of two people: Amarok employee Armando Gutierrez; and hired expert John Loud. Both individuals were deposed and recanted material portions of their declarations, leaving the motion for summary judgment without support of essential asserted factual statements in the memorandum. Plaintiff served a section 128.7 motion regarding the frivolous dispositive motion, and Amarok withdrew the motion.” (Mot., 1:18-23.) Then, “Amarok re-filed essentially the same motion a second time. Amarok removed Gutierrez’s declaration (and references to Gutierrez in the brief) and replaced it with a declaration of an employee even farther removed from the installation of the fence than Gutierrez. Plaintiff further conferred on the frivolous motion, but Amarok declined to withdraw the second motion.” (Mot., 1:24-27.)

Plaintiff argues that Carol Bausinger, an employee who wrote a declaration supporting Defendant’s Motion for Summary Judgment, was not involved in installing the subject fence and does not have the personal knowledge to support Defendant’s arguments. Plaintiff further argues that Defendant’s Motion for Summary Judgment is frivolous because it fails to address contemporaneous witness testimony or credible medical opinion testimony. Moreover, Plaintiff argues that the Motion for Summary Judgment is frivolous because it asserts facts that are not supported by the evidence. Plaintiff attaches certain evidence to support its arguments that Defendant’s arguments are frivolous. (Wilson Decl., Exh. 1-13.)

In opposition, Defendant argues that Plaintiff’s motion does

not present a proper subject for a sanctions motion, but rather, frames evidentiary disputes as sanctionable conduct. Defendant argues that the evidence and arguments presented by Plaintiff's motion are not pertinent to Defendant's Motion for Summary Judgment.

Here, the Court does not find that Defendant's Motion for Summary Judgment is frivolous or otherwise violates the conditions articulated in Code of Civil Procedure section 128.7, subdivision (b). The Court agrees with Defendant that Plaintiff presents evidentiary disputes which may be resolved through the regular litigation of a Motion for Summary Judgment including writing an opposition or objecting to evidence. Whether Defendant's evidence is inadmissible or controverted by Plaintiff's evidence is an issue resolved via Motion for Summary Judgment.

As to Plaintiff's arguments that Defendant failed to address certain evidence showing that Plaintiff contacted the fence or suffered injuries, the Court agrees with Defendant's opposing arguments that such evidence is not necessarily material to Defendant's Motion for Summary Judgment. As argued by Defendant, "Amarok's MSJ/MSA does not seek summary judgment or adjudication by denying that the event occurred or denying causation. Rather, Amarok's MSJ/MSA sets forth undisputed facts that it did not own, possess, or control the premises [and] that its fence complied with all applicable regulations that pertain to electric fences." (Opp., 9:2-6.) This is appropriate on summary judgment: "In moving for summary judgment, a defendant has the "burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established." (Code Civ. Proc., § 437c, subd. (p)(2).) As Defendant's moving burden does not require analysis of every element, the Court cannot find that Defendant engaged in sanctionable conduct by failing to address evidence regarding every element.

Accordingly, Plaintiff's motion for sanctions under Code of Civil Procedure section 128.7 is DENIED. Defendant's request for monetary sanctions is DENIED.

Defendant's Motion for Summary Judgment

Discussion

Defendant moves for summary judgment or, alternative,

summary adjudication as to certain issues.

Defendant's Motion for Summary Judgment is procedurally deficient based on a defective separate statement.

A motion for summary judgment "shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion." (Code Civ. Proc., § 437c, subd. (b)(1).) "The Separate Statement of Undisputed Material Facts in support of a motion must separately identify...[e]ach supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (Cal. Rules of Court, rule 3.1350, (d)(1)(B).)

"The separate statement is not merely a technical requirement, it is an indispensable part of the summary judgment or adjudication process. 'Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for ... summary judgment to determine quickly and efficiently whether material facts are disputed.'" (Whitehead v. Habig (2008) 163 Cal.App.4th 896, 902.)

Here, Defendant's Separate Statement consists of purported facts such as "Plaintiff's first cause of action, for negligence, has no evidentiary support;" "Plaintiff's fourth cause of action, for strict liability, has no evidentiary support because it is based on Civil Code 835(b) and is not supported by the evidence;" and "[t]he subject electric fence complied with the Civil Code Section 835(b)(3)(A) warning sign requirement." (Separate Statement.) These are not facts, but rather, legal arguments or conclusions.

To assert the "undisputed material fact" that Plaintiff's negligence cause of action has no evidentiary support, Defendant cites to certain declarations and testimonies. (Separate Statement.) This requires the Court to sift through the cited evidence to determine which evidence corresponds or does not correspond to each element of negligence. To assert that "[t]he subject electric fence complied with the Civil Code Section 835(b)(4) perimeter fence

location requirement” as an “undisputed material fact” requires the Court to consider the requirements for compliance and identify the technical facts to support compliance within the cited evidence. (Separate Statement.) This is plainly Defendant’s burden in moving for summary judgment. In Defendant’s Memorandum of Points and Authorities, Defendant adds some facts and generally cites to the declarations (excluding exhibit, page, and line numbers) without reference to the Separate Statement at all. (See Mot., 16:5-21.)

In effect, Defendant’s Motion for Summary Judgment puts the burden on the Court to identify each material fact supporting their legal conclusions by pointing to whole declarations as evidence. This is improper. “A motion for summary judgment or summary adjudication will be defective if the moving party fails to (1) accurately identify the facts that are material to the legal theory upon which the motion is based; (2) actually include those material facts in the separate statement; and (3) reference evidence establishing, either directly or by inference, each material fact the moving party claims is undisputed.” (Pierson v. Helmerich & Payne Internat. Drilling Co. (2016) 4 Cal.App.5th 608, 617.)

Accordingly, Defendant’s motion for summary judgment is DENIED without prejudice.